

24NNCV00137 24NNCV00137

County: los-angeles

Division: Civil Law and Motion

Department: 3

Hearing date: 2026-08-25

Motion: DEFENDANT GADSON JOHNSON'S DEMURRER TO PLAINTIFF'S SECOND CAUSE OF ACTION FOR BREACH OF FIDUCIARY DUTY; DEFENDANT HIRUY GESSESSE'S DEMURRER TO PLAINTIFF'S SECOND CAUSE OF ACTION FOR BREACH OF FIDUCIARY DUTY

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Case Number: 24NNCV00137 Hearing Date: August 25, 2026 Dept: 3

SUPERIOR COURT OF THE STATE OF

CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHEAST

DISTRICT

JULIAN BENITO ZERMENO, by and through his

successor-in-interest, JOSE LUIS ZERMENO and BEATRIZ MORENO, et al.,

Plaintiff(s),

vs.

ATLA LOS

ANGELES HOSPITALS INC. dba LOS ANGELES COMMUNITY HOSPITAL, et al.,

Defendant(s).

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CASE NO.: 24NNCV00137

[TENTATIVE]

ORDER RE: DEFENDANT GADSON JOHNSON'S DEMURRER TO PLAINTIFF'S SECOND

CAUSE OF ACTION FOR BREACH OF FIDUCIARY DUTY; DEFENDANT HIRUY GESSESSE'S

DEMURRER TO PLAINTIFF'S SECOND CAUSE OF ACTION FOR BREACH OF FIDUCIARY DUTY

Dept.

8:30

a.m.

August

25, 2026

I. INTRODUCTION

On March 8,

2024, Jose Luis Zermeno and Beatriz Moreno (collectively, "Plaintiffs"),

individually and as successors-in-interest to Julian Benito Zermeno ("Julian"),

filed this action against Gadson Johnson, M.D. ("Dr. Johnson") and Hiruy

Gessesse, M.D. ("Dr. Gessesse", erroneously sued as Hiruy Genessee)

(collectively, "Defendants"). Plaintiffs filed a First Amended Complaint on June

16, 2026. Plaintiffs allege, as part of

their Second Cause of Action for breach of fiduciary duty, that Defendants

violated their fiduciary duty by placing Julian in an inappropriate and unsafe

adult residential facility and placed their own interest in discharging Julian

ahead of Julian's need for placement in a locked/secured facility. (FAC, ¶¶ 69,

70.) Plaintiffs allege Defendants failed to speak with Zermeno, Julian's

conservator, and failed to establish a safe plan for discharge or obtain

Zermeno's written consent before signing off on Julian's discharge and

transfer. (FAC, ¶ 73.) As a result, Julian was transferred to an "unsecured

adult residential facility from which he fled on or about March 10, 2023, and was fatally struck by an SUV, resulting in life threatening injuries that caused his death.” (FAC, ¶ 74.)

On

July 7, 2026, Defendants each filed a demurrer to Plaintiff’s Second Cause of Action on the grounds that it is duplicative, uncertain, fails to state facts sufficient to maintain a cause of action, and is vague and ambiguous.

Plaintiffs

filed opposition briefs on August 11, 2026.

Defendants each

filed a reply brief on August 18, 2026.

II. LEGAL

STANDARD

A demurrer may be brought if

insufficient facts are stated to support the cause of action asserted. (Code

Civ. Proc., § 430.10, subd. (e).) A demurrer tests the legal sufficiency of the

pleadings and will be sustained only where the pleading is defective on its

face. (*City of Atascadero v. Merrill*

Lynch, Pierce, Fenner & Smith, Inc. (1998) 68 Cal.App.4th 445, 459.)

“We treat the demurrer as admitting all material facts properly pleaded but not

contentions, deductions or conclusions of fact or law. We accept the factual

allegations of the complaint as true and also consider matters which may be

judicially noticed. [Citation.]" (Mitchell

v. California Department of Public Health (2016) 1 Cal.App.5th 1000, 1007; Del E. Webb Corp. v.

Structural Materials Co. (1981) 123 Cal.App.3d 593, 604 ["the facts alleged

in the pleading are deemed to be true, however improbable they may be".)

A demurrer may also be brought for

uncertainty. (Code Civ. Proc., § 430.10, subd. (f).) "A demurrer for

uncertainty is strictly construed, even where a complaint is in some respects

uncertain, because ambiguities can be clarified under modern discovery

procedures." (Khoury v. Maly's of

California, Inc. (1993) 14 Cal.App.4th 612, 616.) Where the complaint

contains substantial factual allegations sufficiently apprising defendant of

the issues it is being asked to meet, a demurrer for uncertainty will be

overruled or plaintiff will be given leave to amend. (Williams v. Beechnut Nutrition Corp. (1986) 185 Cal.App.3d 135,

139, fn. 2.)

III. DISCUSSION

"The elements of a cause of action for

breach of fiduciary duty are: (1) the existence of a fiduciary duty; (2) breach

of the fiduciary duty; and (3) damage proximately caused by the breach." (Jameson

v. Desta (2013) 215 Cal.App.4th 1144, 1164.) “[A] physician has a fiduciary duty to disclose all information material to the patient's decision,” when soliciting a patient's consent to a medical procedure. (Moore v. Regents of University of California (1990) 51 Cal.3d 120, 129 (Moore), citing, among other cases, Cobbs v. Grant (1972) 8 Cal.3d 229, 242.) A cause of action premised on a physician's breach of this fiduciary duty may alternatively be referred to as a claim for lack of informed consent. (See, e.g., Moore, supra, at p. 133.)

Defendants argue that Plaintiffs fail to allege a breach of fiduciary duty because there are no allegations regarding Dr. Johnson's involvement in the decision to discharge or transfer Julian and Dr. Gessesse is the only physician who allegedly signed the discharge paperwork. However, both doctors were allegedly assigned to the care of Julian in their capacity as psychiatrists and Julian was under their care, supervision, guidance, and control. (FAC, ¶¶ 22-23.) Both physicians allegedly assessed him and failed to establish a safe plan for discharge. (FAC, ¶ 69.) Therefore, Dr. Johnson's demurrer on this ground is OVERRULED.

Defendants also argue that Plaintiffs' breach of fiduciary duty is duplicative of Plaintiffs' negligence claim. However, Plaintiffs argue their breach of fiduciary duty claim is not based on a failure

to exercise due care in providing medical treatment, but on disloyalty and failure to provide the information necessary to make an informed decision. (Opp., p. 10.) Plaintiffs argue that they may be able to establish a breach of fiduciary duty without establishing negligence, or vice versa, due to the different elements required for each claim. The Court notes that Plaintiffs assert 18 different counts under their First Cause of Action for negligence but failing to obtain informed consent and provide all material information to Plaintiffs is not included in any of them. Accordingly, the Court agrees that the Second Cause of Action is not duplicative.

IV. CONCLUSION

Based on the foregoing, Defendants' demurrers are OVERRULED.

Moving party to give notice.

Dated

this 25th

day of August

2026

William A. Crowfoot

Judge of the Superior Court

Parties who intend to submit on this

tentative must send an email to the Court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court may, at its discretion, adopt the tentative as the final order or place the motion off calendar.